TERMS OF SERVICE

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PLEASE READ THIS DOCUMENT CAREFULLY BEFORE ACCESSING OR USING THE Folo WEBSITE. BY ACCESSING OR USING OUR WEBSITE, YOU, THE USER, CONFIRM YOU ARE ABOVE 18 YEARS OF AGE AND AGREE TO BE BOUND BY OUR TERMS OF SERVICE SET FORTH BELOW. IF YOU DO NOT WISH TO BE BOUND BY THESE TERMS, YOU ARE ADVISED NOT TO CONTINUE USING THE WEBSITE ANY LONGER.

1. DEFINITIONS

In this Terms of Service, the following terms shall be defined and interpreted as follows:

A. "Content" means any material uploaded to Folo by any User (whether a Creator or a Fan), including any photos, videos, audio (for example, music and other sounds), livestream material, data, text (such as comments and hashtags), metadata, images, interactive features, emojis, GIFs, memes, and any other material whatsoever.
B. “Channel” means a digital account of a Creator through which they distribute and monetize exclusive Content to their Fans on a subscription-based services or access tiers (such as premium media, special shop items, direct messaging, and custom requests).
C. "Creator" means a User who has set up their Folo account as a Creator account to post Content on Folo to be viewed by other Users.
D. “Creator earnings” means any and all Fan payments made to a Creator, minus Folo fees as applicable, exclusive of any VAT element.
E. “Event” means a livestream show or similar scheduled activity organised by a Creator, for which Creators may charge Fans for advance tickets (or choose to offer Events for free).
F. "Fan" means a User who follows a Creator and is able to view the Creator's Content.
G. "Fan/Creator Transaction" means any transaction between a Fan and a Creator on Folo by which access is granted to the Creator's Content including in any of the following ways: (i) a Subscription, (ii) payments made by a Fan to view a Creator's pay-per-view Content (pay-per-view media and pay-per-view live stream), and (iii) use by the Fan of the fan interaction function on a Creator's account.
H. "Fan Payment" means any and all payments made by a Fan to a Creator (i) in connection with a Fan/Creator Transaction, or (ii) by way of a tip for a Creator.
I. “Match” means a feature of the Folo platform that lets a Creator create a specialised profile to help Fans discover and connect with them based on tags and interests.
J. “MatchMaker” means a feature of the Folo platform that allows Users to Match and interact with other like-minded Users at Folo, primarily for dating purpose.
K. “Referral” means the process by which a Referring User invites another person to join the Folo platform and receives a percentage share of the referred User’s earning, if any.
L. "Referring User" means a User who participates in the Folo Referral Program.
M. “Shop” means a virtual storefront or marketplace in Folo where a Creator offers physical items for fixed price sale or auction to Fans, including but not limited to items such as clothing, accessories, toys, jewellery, and similar products and merchandise that are tangible and intended for physical delivery.
N. "Subscription" means a Fan's subscription to a Creator's account (whether paid or unpaid, and whether for one month or as part of a bundle comprising a subscription for more than one month).

O. "Tax" means and includes all forms of tax and statutory, governmental, state, federal, provincial, local government or municipal charges, duties, imposts, contributions, levies, withholdings or liabilities wherever chargeable and whether of the UK or any other jurisdiction.
P. "User" means any user of Folo, whether a Creator or a Fan or both (also referred to as "you" or "your").
Q. "VAT" means United Kingdom value added tax and any other tax imposed in addition to or in substitution for it at the rate from time to time imposed and any equivalent or similar governmental, state, federal, provincial, or municipal indirect tax, charge, duty, impost or levy in any other jurisdiction.

2. REGISTERING WITH Folo

Folo is a social ecommerce website that brings together the best of social, ecommerce and subscription services and uses machine learning to match Users with Creators. To use Folo, you must first register and create a User account on Folo. You must provide a valid email address, a username, and a password, or authenticate using a valid Twitter or Google account. Your password should be unique (meaning that it is different from those you use for other websites) and must comply with the technical requirements of the Folo site for the composition of passwords. To register as a User:

A. You must be of legal age as defined by the laws of the country/ state/ province of your residence, but not younger than 18 years, and you are required to confirm this compliance.
B. You must be permitted by the laws of the country/ state/ province of your residence to join Folo and to view any Content available on it and to use any functionality provided by it.
C. You must provide such other information or verification records as we require, and make sure that all information which you submit to us is truthful, accurate, and complete, and/or update such information as soon as possible if it changes.
D. You must consent to receiving communications from us electronically, including by emails and messages posted to your Folo account, and to the processing of your personal data as more fully detailed in our Privacy Policy.
E. If you previously had a Folo account, you further confirm that your old account was not terminated or suspended by us because you violated any of our terms or policies.

If you wish to open a Creator account, you will need to follow our “Additional Terms for Creators and Collaborators”.
If you do not or cannot meet the above requirements, you must not access or use Folo.

3. CONFIDENTIALITY OF YOUR ACCOUNT

A. You agree and represent that you will not share your account or login information, let anyone else access your account, or do anything else that might jeopardise the security of your account. You also agree to ensure that you log out of your account at the end of each session, and to be particularly careful when accessing your account from a public or shared computer so that others are not able to access, view or record your password or other personal information.
B. You are solely responsible for maintaining the confidentiality of your login information and all subsequent activity that takes place by or in your account. You will be solely responsible for all uses of your login information, whether or not authorised by you, including any losses incurred due to the unauthorised use of your account. Folo is not liable for your losses caused by any unauthorised use of your account under any circumstances, including but not limited to any unauthorised payment or withdrawal of funds, and you hereby specifically waive any such claim and agree to defend, hold harmless, and indemnify Folo against any such claims.
C. In the event that you become aware of, or reasonably suspect, any security breach, including, without limitation, any loss, theft, or unauthorised access or disclosure of your login information, you must immediately notify Folo by emailing support@Folo.co and modify your login information.

D. Further, you understand and agree that your profile and/or your Content may be searchable by third-party publicly available search engines or internet archives; should you wish to have some or all of your profile and/or Content removed from the publicly available search engines, it is your sole responsibility to do so and to file such removal requests with the concerned search engine(s) operator(s).

4. DELETING YOUR ACCOUNT

These Terms of Service shall be effective as of the date you start to use the Folo website and remain in effect as long as you use the Website. If you want to delete your Folo account, then you may do so at any time through the 'User Account' section of your Folo account.

A. If you are a Fan, the deletion of your account will take place within a reasonable time following your request.
B. If you are a Creator, then once you initiate the "delete account" process, your account will remain open until the last day of your Fans' paid Subscription period, following which you will receive your final payment, and your account will be deleted.
C. If you are both a Fan and a Creator, then your account will be deleted in two stages (Fan first and then Creator).
D. Once your account has been deleted, you won't be charged any further amounts or have access to your former Folo account or its Content, and any subscriptions will be deleted and cannot be subsequently renewed. You will receive an email confirmation upon the successful deletion of your account. Once your account has been deleted, we may deal with your Content in any appropriate manner in accordance with our Privacy Policy (including by deleting it), and you will no longer be entitled to access your Content. There is no technical facility on Folo for you to be able to access your Content following the termination of your account. However, even after you delete your account, your Content may continue to remain in the account or possession of any Fan who has purchased that Content.

5. SOCIAL MEDIA INTEGRATION

Once you have registered with Folo, you can also integrate your Folo account with other active social media channels of your choice (currently this facility is available with X, formerly known as Twitter) and share your Content via Folo posts. You agree to fully comply with the terms of service of these social media platforms (such as Terms of Service of X as available here) as updated from time to time and Folo will bear no liability or consequences if you fail to adhere to the same.

6. ACCEPTABLE USE OF THE Folo WEBSITE

In order to maximise your user experience in using the Folo Website, and avoid, eliminate or minimise disruptive activities, we request you to use Folo in a manner and for a purpose that is lawful, and not to indulge in any of the following -

A. **Do not** use Folo except for your own personal use and do not sell, rent, transfer, or share your account or any Content obtained from your use of Folo to or with anyone else.
B. **Do not** upload, post, display, or publish Content on Folo that is illegal, fraudulent, defamatory, hateful, discriminatory, threatening or harassing, or which encourages or promotes violence or any illegal activity.
C. **Do not** use Folo in any way which may exploit, harm, or attempt to exploit or harm any individual under 18 years old**,** for example by exposing them to inappropriate Content.
D. **Do not** upload, post, display, or publish any Content on Folo that:
    a. shows, includes or refers to any individual under 18 years old (or which refers to individuals under 18 years old generally); or any other individual unless you have written documentation which confirms that all individuals shown or included or referred to in your

Content are at least 18 years old, and you have a written consent from each individual to use their name or images (or both) in the Content;

b. shows, promotes, advertises or refers to:
    i) firearms, weapons, or any goods whose sale, possession or use is subject to prohibitions or restrictions;
    ii) drugs or drug paraphernalia;
    iii) self-harm or suicide;
    iv) incest;
    v) bestiality;
    vi) violence, rape, lack of consent, hypnosis, intoxication, sexual assault, torture, sadomasochistic abuse or hardcore bondage, extreme fisting, or genital mutilation;
    vii) necrophilia;
    viii) urine, scatological, or excrement-related material;
    ix) "revenge porn" (being any sexually explicit material featuring any individual who has not given prior, express and fully informed consent to that material (a) being taken, captured, or otherwise memorialised, or (b) being posted and shared on Folo);
    x) escort services, sex trafficking, or prostitution;

c. contains unsolicited sexual content or unsolicited language that sexually objectifies another User or anyone else in a non-consensual way, or contains fake or manipulated sexual content in relation to another User or anyone else (including "deepfakes");

d. contains, promotes, advertises or refers to hate speech (being Content intended to vilify, humiliate, dehumanise, exclude, attack, threaten, or incite hatred, fear of, or violence against, a group or individual based on race, ethnicity, national origin, immigration status, caste, religion, sex, gender identity or expression, sexual orientation, age, disability, serious disease, veteran status, or any other protected characteristic);

e. contains or refers to anyone else's personal data or private or confidential information (for example, telephone numbers, location information (including street addresses and GPS coordinates), names, identity documents, email addresses, log-in credentials for Folo including passwords and security questions, financial information including bank account and credit card details, biometric data, and medical records) without that person's express written consent;

f. exhibits recording that:
    i) in the case of Content featuring public nudity, was recorded in or is being broadcast from a country, State or province where public nudity is illegal; or
    ii) in the case of Content featuring sexual activities, was recorded in or is being broadcast from a public place where members of the public are reasonably likely to see the activities being performed (this does not include outdoor places where members of the public are not present, for example private property such as a private backyard, or secluded areas in nature where members of the public are not present).

g. gives the impression that it comes from or is approved, licensed or endorsed by us or any other person or company;

h. causes or is calculated to cause inconvenience, or anxiety to anyone else or which is likely to upset, embarrass, or cause serious offence to anyone else;

i. is used or is intended to be used to extract money or another benefit from anyone else in exchange for removal of the Content; and/or

j. involves or promotes third-party commercial activities or sales, such as contests, sweepstakes and other sales promotions, product placements, advertising, or job posting or employment ads without our prior express consent.

E. **Do not** violate our Community Guidelines available at Folo.co/community-guidelines.

F. **Do not** use Folo to stalk, bully, abuse, harass, threaten or intimidate anyone else.

G. **Do not** use Folo to engage in misleading or deceptive conduct, or conduct that is likely to mislead or deceive any other User.

H. **Do not** violate or otherwise disrespect the intellectual property rights of Creators**,** including by not recording, reproducing, sharing, communicating to the public, or otherwise distributing their Content without authorisation.

I. **Do not** do anything that violates our or someone else's rights, including intellectual property rights (examples of which are copyright, trademarks, confidential information, and goodwill), personality rights, unfair competition, privacy, and data protection rights.
J. **Do not** impersonate us, one of our employees, another User, or any other person or company or falsely suggest any affiliation, endorsement, sponsorship between you and us or any other person or company.
K. **Do not** provide false account registration information or make unauthorised use of anyone else's information or Content.
L. **Do not** post or cause to be posted any Content which is spam or otherwise inauthentic, repetitive, misleading, or low quality.
M. **Do not** transmit, stream, or otherwise send any pre-recorded audio or video material during a live stream or otherwise attempt to pass off recorded material as a live stream.
N. **Do not** use other media or methods (for example the use of codewords or signals) to communicate anything which violates this Policy.
O. **Do not** reproduce, print, distribute, attempt to download, modify, create derivative works of, publicly display, publicly perform, republish, download, store or transmit any Content, except as permitted under the Terms of Service.
P. **Do not** knowingly introduce any viruses, trojans, worms, logic bombs or other material into Content which is or may be malicious or technologically harmful.
Q. **Do not** decompile, disassemble, reverse engineer, or otherwise attempt to discover or derive the source code of Folo.
R. **Do not** use Folo in a way that could adversely affect our systems or security or interfere with any other User's use of Folo, including their ability to engage in real-time activities through Folo.
S. **Do not** use any automated program, tool or process (such as web crawlers, robots, bots, spiders, and automated scripts) to access Folo or any server, network or system associated with Folo, or to extract, scrape, collect, harvest or gather Content or information from Folo.
T. **Do not** use Folo's name, logo or any related or similar names, logos, product and service names, designs, or slogans other than in the limited ways which are expressly permitted in the Terms of Service or with our prior written agreement.

Breaches of this section may lead to your account being suspended or terminated and access to your earnings being revoked, as set out in the Terms of Service.

7. GUIDELINES FOR UPLOADING CONTENT

A. All Content is created, selected, and provided by Creators and not by Folo. Although we reserve the right (but are not obligated to) to moderate and review uploaded Content for legal compliance both before and after uploading, we do not pre-emptively select, approve, authorise or modify any Content that is stored or transmitted via Folo.
B. If you are a Fan, you can only post text comments or participate in polls, and comment on Creator Content. You cannot upload any media Content except in MatchMaker, which requires registration of a separate profile.
C. We do not grant you any rights in relation to any uploaded Content. Any such rights may only be granted to you by Creators.
D. Views expressed by other Creators or Fans on Folo do not necessarily align with or represent our views.
E. Your Content should not violate any law or depict in any unlawful activity, or encourage other Users (or anyone else) to violate any law or depict any unlawful activity.
F. Your Content should not infringe any of our rights or those of any third party in relation to your use of the Website, including, without limitation, a person's Intellectual Property Rights, contractual rights, confidentiality rights, human rights, rights to privacy and other rights under applicable law;
G. Your Content should not be a repost or a replication of any Content (whether yours or anyone else's) which we have declared to be in breach of our Terms of Service or our Community Guidelines.

H. Your Content may be viewed by individuals that recognise your identity. We will not in any way be responsible to you if you are identified from your Content. While we may, from time to time and in our sole discretion, offer certain geofencing or geolocation technology on Folo, you understand and agree that we do not guarantee the accuracy or effectiveness of such technology, and you will have no claim against us arising from your use of or reliance upon any geofencing or geolocation technology on Folo.
I. You agree that you have no obligation to follow any suggestions, comments, reviews, or instructions received from another User of Folo and that if you choose to do so, you do so entirely at your own risk.
J. We make no promises or guarantees of any kind that Creators or Referring Users will make a particular sum of money (or any money) from their use of Folo (including the Folo Referral Program).
K. The materials which we make accessible on Folo for Users are for general information only. We make no promises or guarantees about the accuracy or otherwise of such materials, or that Users will achieve any particular result or outcome from using such materials.
L. We do not promise that Folo is compatible with all devices and operating systems. You are responsible for configuring your information technology, device, and computer programs to access Folo. You should use your own virus protection software.
M. We are not responsible for the availability of the internet, or any errors in your connections, device or other equipment, or software that may occur in relation to your use of Folo in uploading or downloading Content.
N. While we try to make sure that Folo is secure and free from bugs and viruses, we cannot promise that it will be and have no control over the Content that is supplied by Creators.
O. You acknowledge that once your Content is posted on Folo, we cannot control and will not be responsible to you for the use which other Users or third parties make of such Content. You can delete your account at any time, but you acknowledge that deleting your account will not of itself prevent the circulation of any of your Content which may have been recorded by other Users in breach of the Terms of Service or by third parties prior to the deletion of your account.

8. MODERATION OF UPLOADED CONTENT

A. We reserve the right but are not obligated to moderate or review any of your uploaded Content to verify compliance with our Terms of Service and/or any applicable law.
B. It is our policy to suspend access to any Content you post on Folo which we become aware may not comply with the Terms of Service and/or any applicable law while we investigate the suspected non-compliance or unlawfulness of such Content. If we suspend access to any of your Content, you may request a review of our decision to suspend access to the relevant Content by contacting us at support@Folo.co. Following our investigation of the suspected non-compliance or unlawfulness of the relevant Content, we may take any action we consider appropriate, including reinstating access to the Content or permanently removing or disabling access to the relevant Content without needing to obtain any consent from you and without giving you prior notice. You agree that you will at your own cost promptly provide us with all reasonable assistance (including by providing us with copies of any information which we request) in our investigation. We will not be responsible for any loss suffered by you arising from the suspension of access to your Content or any other steps which we take in good faith to investigate any suspected non-compliance or unlawfulness of your Content under this section.
C. If we suspend access to or delete any of your Content, we will notify you via email or electronic message to your Folo account, but we are not obligated to give you prior notice of such removal or suspension.
D. We reserve the right, in our sole discretion, to terminate your account and your access to Folo for any reason by giving you 30 days' notice by email or electronic message to your Folo account.
E. We can also suspend access to your User account or terminate your agreement with us and your access to Folo immediately and without prior notice:
    - if we think that you have or may have seriously or repeatedly breached any part of the Terms of Service (including in particular our Acceptable Use Policy), or if you attempt or

threaten to breach any part of the Terms of Service in a way which has or could have serious consequences for us or another User; or
- if you take any action that in our opinion has caused or is reasonably likely to cause us to suffer a loss or that otherwise harms the reputation of Folo.

F. If we suspend access to your User account or terminate your agreement with us and your access to Folo, we will let you know. During any period when access to your User account is suspended, any Fan Payments which would otherwise have fallen due during the period of suspension will be suspended, and we may withhold all or any part of the Creator Earnings due to you but not yet paid out in accordance with section 5 of the Additional Terms for Creators and Collaborators.
G. Upon termination of your account, we may deal with your Content in any appropriate manner in accordance with our Privacy Policy (including by deleting it) and you will no longer be entitled to access your Content. There is no technical facility on Folo for you to be able to access your Content following termination of your account.
H. We can investigate any suspected or alleged misuse, abuse, or unlawful use of Folo and cooperate with law enforcement agencies in such investigation.
I. We can disclose any information or records in our possession or control about your use of Folo to law enforcement agencies in connection with any law enforcement investigation of any suspected or alleged illegal activity, or to protect our rights or legal interests, or in response to legal process.
J. We can change the third-party payment providers used to process payments on Folo and if we do so, we will notify you and store applicable details on your Folo account.
K. Other than Content (which is owned by or licenced to Creators), all rights in and to Folo and its entire contents, features, databases, source code and functionality, are owned by us and/or our licensors. Such material is protected by copyright, and may be protected by trademark, trade secret, and other intellectual property laws.
L. We are the sole and exclusive owners of any and all anonymised data relating to your use of Folo and such anonymised data can be used by us for any purpose, including for commercial, development and research purposes.

9. SHOP TERMS

A. You are solely responsible for the accuracy, legality, and quality of all items listed for sale or auction through your Folo Shop. This includes providing clear descriptions, accurate photographs, transparent pricing, and adhering to all applicable legal and regulatory requirements of the jurisdiction where the transaction occurs or is purported to occur.
B. Once a sale has been made, you are obligated to fulfil the sale order in a timely and professional manner. This includes packaging items securely to prevent damage during transit, arranging for prompt and reliable shipping, and providing the buyer User with timely updates regarding the status of their orders. Specifically, you must ensure that accurate tracking information of the sold item is shared with the buyer (User / Fan) through appropriate channels (such as through direct message or Folo Chat) within 24 hours of shipping the item.
C. You are solely responsible for addressing and resolving any issues that arise from shipping delays, damages, or losses during transit. Folo strongly encourages all Creators to secure adequate insurance coverage to protect themselves against any potential damages, losses, or claims that may occur while the sale items are in transit. Failure to obtain the necessary insurance may result in unexpected claims or costs for which Folo will not bear any responsibility whatsoever.
D. You are also responsible for the payment of all applicable import duties, taxes, tariffs, and any other charges related to the sale and delivery of your listed Shop items. This includes, but is not limited to, ensuring that all costs associated with customs clearance and compliance with import regulations are fully covered. Folo is not liable for any import-related charges or disputes that may arise in connection with the sale and delivery of any Shop items sold by a Creator.
E. Accepting any cancellation, return and refund of an item sold or auctioned through the Shop is the Creator’s sole prerogative and liability.

F. The following items are expressly prohibited and cannot be listed for sale in any Folo Shop: firearms, ammunition, explosives, fireworks, controlled substances, illegal drugs, prescription medications (unless legally authorised), items that require special licenses or permits, counterfeit goods, stolen property, and any other items that are illegal or restricted under applicable laws or regulations. This prohibition extends to any item that poses a risk to public safety, health, or morals, including but not limited to hazardous materials and items that violate intellectual property rights. Listing such prohibited items will result in immediate suspension or termination of your account, and may involve further legal action, including but not limited to civil and criminal penalties. Folo authorities reserve the right to remove any listings that violate these terms and to take appropriate measures to enforce compliance and ensure the safety and legality of all transactions conducted through the Website.

10. INTELLECTUAL PROPERTY RIGHTS

A. You confirm that you own all intellectual property rights (examples of which are copyright and trademarks) in your Content or that you have obtained all necessary rights to your Content which are required to grant licences in respect of your Content to us and to other Users. This includes any rights required to engage in the acts covered by section 11(B) below in any territory in which Folo is accessible and, in particular, in the United States of America, the United Kingdom, and the European Union. You assert that you either own or have obtained necessary licences for all intellectual property in your Content.
B. You agree to grant us a licence under all your Content to perform any act restricted by any intellectual property right (including copyright) in such Content, for any purpose reasonably related to the provision and operation of Folo. Such acts include reproducing, making available and communicating to the public, displaying, performing, distributing, translating, and creating adaptations or derivative works of your Content, and otherwise dealing in your Content.
C. The licence which you grant to us under section 11(B) above is perpetual, non-exclusive, worldwide, royalty-free, sublicensable, assignable, and transferable by us. This means that the licence will continue even after your agreement with us ends and you stop using Folo, that we do not have to pay you for the licence, and that we can grant a sublicense of your Content to someone else or assign or transfer the licence to someone else. This licence will allow us, for example, to add stickers, text, and watermarks to your Content, to make your Content available to other Users of Folo, as well as to use your Content for other normal operations of Folo. We will never sell your Content to other platforms, though we may sell or transfer any licence you grant to us in the Terms of Service in the event of a sale of our company or its assets to a third party.
D. Whilst we do not own your Content, you grant us the limited right to submit notifications of infringement (including of copyright or trademark) on your behalf to any third-party website or service that hosts or is otherwise dealing in infringing copies of your Content without your permission. Although we are not under any obligation to do so, we may at any time submit or withdraw any such notification to any third-party website or service where we consider it appropriate to do so. However, we do not and are under no obligation to police infringements of your Content. You agree that if we request, you will provide us with all consents and other information which we reasonably need to submit notifications of infringement on your behalf. Please see our Complaints Policy for how to make a complaint about infringement of intellectual property rights.
E. You waive any moral rights which you may have under any applicable law to object to derogatory treatment of any Content posted by you on Folo. This waiver does not affect in any way your ownership of any intellectual property rights in your Content or the rights which you have to prevent your Content from being copied without your permission. The waiver is intended to allow us when dealing with your Content (as permitted by the licence which you give us in section 11(B) above) to add watermarks, stickers, or text to your Content.

11. COPYRIGHT POLICY

If you believe there has been any unauthorised uploading or sharing of your Content by or through our Website amounting to copyright infringement, please get in touch with us immediately in accordance with the procedure set forth below. We value the intellectual property rights of all copyright holders and will process and investigate notices of alleged infringement and promise to take appropriate actions under applicable intellectual property laws with respect to any alleged or actual infringement.

For us to process your complaint as a notice pursuant to the United States Digital Millennium Copyright Act 17 U.S.C. §512(c) (or any national equivalent laws), a notification of the claimed copyright infringement should be emailed to Folo's Copyright Agent at: support@Folo.co with the subject line "DMCA Takedown Request" and containing the following information:

a) a description of the copyrighted work or other intellectual property that you claim has been infringed;
b) an electronic or physical signature of the person authorised to act on behalf of the owner of the copyright or other intellectual property interest;
c) a detailed description of where the material that you claim is infringing is located on the Website, so as to assist us with prompt identification;
d) your postal address, telephone number, and email address;
e) a statement by you that you have a good faith belief that the disputed use is not authorised by the copyright or intellectual property owner, its agent, or the law;
f) a statement by you, made under penalty of perjury, that the above information in your Notice is accurate and that you are the copyright or intellectual property owner or authorised to act on the copyright or intellectual property owner's behalf.

Please do not send other inquiries or information to our Copyright Agent. This policy only applies to infringing content published on Folo website at www.Folo.co. To report infringing material on other sites, please get in touch with the other site or your local authorities. Absent prior express permission, our Copyright Agent is not authorised to accept or waive service of formal legal process, and any agency relationship beyond that required to accept valid DMCA Notices is expressly disclaimed.

If you believe that we have removed any of your Content that was not infringing, or that you have the authorisation from the copyright owner, the copyright owner's agent, or pursuant to the law, to upload and use the material in or through your user account, you may send a written counter-notice containing the following information to the Copyright Agent:

a) identification of the Content that has been removed or to which access has been disabled and the location at which the Content appeared before it was removed or disabled;
b) your physical or electronic signature;
c) a statement that you have a good faith belief that the Content was removed or disabled as a result of mistake or a misidentification of the Content; and
d) your name, postal address, telephone number, and email address, a statement that you consent to the jurisdiction of the court(s) in London and a statement that you will accept service of process from the person who provided notification of the alleged infringement.

If a counter-notice is received by our Copyright Agent, Folo will send a copy of the counter-notice to the original complaining party informing that person that it may replace the removed Content or cease disabling it in 10 business days. Unless the copyright owner files an action seeking a court order against the Content provider or user, the removed Content may be replaced, or access to it restored in due time at our sole discretion.

12. DISCLAIMER OF WARRANTY

THE WEBSITE IS PROVIDED ON AN AS-IS AND AS-AVAILABLE BASIS AND YOUR USE AND ACCESS OF THE SAME WILL BE AT YOUR SOLE RISK AND RESPONSIBILITY AT ALL TIMES. TO THE FULLEST EXTENT PERMITTED BY LAW, WE DISCLAIM ALL WARRANTIES, EXPRESS OR

IMPLIED, IN CONNECTION WITH THE WEBSITE AND YOUR USE THEREOF, INCLUDING, WITHOUT LIMITATION, THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. WE MAKE NO WARRANTIES OR REPRESENTATIONS ABOUT THE ACCURACY OR COMPLETENESS OF THE WEBSITE'S CONTENT OR THE CONTENT OF ANY OTHER THIRD-PARTY WEBSITES LINKED TO THIS WEBSITE AND WE WILL ASSUME NO LIABILITY OR RESPONSIBILITY FOR ANY (1) ERRORS, MISTAKES, OR INACCURACIES OF CONTENT AND MATERIALS, (2) PERSONAL INJURY OR PROPERTY DAMAGE, OF ANY NATURE WHATSOEVER, RESULTING FROM YOUR ACCESS TO AND USE OF THE WEBSITE, (3) ANY UNAUTHORISED ACCESS TO OR USE OF OUR SECURE SERVERS AND/OR ANY AND ALL PERSONAL INFORMATION AND/OR FINANCIAL INFORMATION STORED THEREIN, (4) ANY INTERRUPTION OR CESSATION OF TRANSMISSION TO OR FROM THE WEBSITE, (5) ANY BUGS, VIRUSES, TROJAN HORSES, OR THE LIKE WHICH MAY BE TRANSMITTED TO OR THROUGH THE WEBSITE BY ANY THIRD PARTY, AND/OR (6) ANY ERRORS OR OMISSIONS IN ANY CONTENT AND MATERIALS OR FOR ANY LOSS OR DAMAGE OF ANY KIND INCURRED AS A RESULT OF THE USE OF ANY CONTENT POSTED, TRANSMITTED, OR OTHERWISE MADE AVAILABLE VIA THE WEBSITE. WE DO NOT WARRANT, ENDORSE, GUARANTEE, OR ASSUME RESPONSIBILITY FOR ANY PRODUCT OR SERVICE ADVERTISED OR OFFERED BY A THIRD PARTY THROUGH THE WEBSITE, ANY HYPERLINKED WEBSITE, OR ANY MOBILE APPLICATION FEATURED IN ANY BANNER OR OTHER ADVERTISING, AND WE WILL NOT BE A PARTY TO OR IN ANY WAY BE RESPONSIBLE FOR MONITORING ANY TRANSACTION BETWEEN YOU AND ANY THIRD-PARTY PROVIDERS OF PRODUCTS OR SERVICES. AS WITH THE PURCHASE OF A PRODUCT OR SERVICE THROUGH ANY MEDIUM OR IN ANY ENVIRONMENT, YOU SHOULD USE YOUR BEST JUDGMENT AND EXERCISE CAUTION WHERE APPROPRIATE.

13. LIMITATION OF LIABILITY

IN NO EVENT WILL Folo OR ITS DIRECTORS, EMPLOYEES, OR AGENTS BE LIABLE TO YOU OR ANY THIRD PARTY FOR ANY DIRECT, INDIRECT, CONSEQUENTIAL, EXEMPLARY, INCIDENTAL, SPECIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFIT, LOST REVENUE, LOSS OF DATA, OR OTHER DAMAGES ARISING FROM YOUR USE OF THE WEBSITE, EVEN IF WE HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. NOTWITHSTANDING ANYTHING TO THE CONTRARY CONTAINED HEREIN, OUR LIABILITY TO YOU FOR ANY CAUSE WHATSOEVER AND REGARDLESS OF THE FORM OF THE ACTION, WILL AT ALL TIMES BE LIMITED TO THE AMOUNT PAID, IF ANY, BY YOU TO US DURING THE SIX (6) MONTH PERIOD PRIOR TO ANY CAUSE OF ACTION ARISING. CERTAIN US STATE LAWS AND INTERNATIONAL LAWS DO NOT ALLOW LIMITATIONS ON IMPLIED WARRANTIES OR THE EXCLUSION OR LIMITATION OF CERTAIN DAMAGES. IF THESE LAWS APPLY TO YOU, SOME OR ALL OF THE ABOVE DISCLAIMERS OR LIMITATIONS MAY NOT APPLY TO YOU, AND YOU MAY HAVE ADDITIONAL RIGHTS.

14. INDEMNIFICATION

To the maximum extent permitted by applicable law, you agree to indemnify, defend and hold harmless Folo, its officers, directors, employees, agents, consultants, representatives and agents from and against all losses, damages, suits, judgments, costs and expenses (including litigation costs and reasonable attorneys' fees) arising out of or in connection with (a) your use of or inability to use the Website, (b) your violation of any provision of these Terms of Service or your violation of any rights of a third party, or (c) your violation of any applicable laws, rules or regulations. Folo reserves the right, at its own cost, to assume the exclusive defense and control of any matter otherwise subject to indemnification by you, in which event you will offer complete cooperation with Folo in asserting any available defenses.

15. SUSPENSION OF SERVICE

Folo reserves the exclusive right to fully or partially suspend, discontinue, or cease providing, at any time and from time to time, temporarily or permanently, any part or function of the Website with or without notice, and shall have no liability or responsibility to you in any manner whatsoever if it chooses to do so. All relevant provisions of these Terms of Service which by their nature should survive such suspension or termination shall survive, including, without limitation, intellectual property ownership, warranty disclaimers, indemnity and limitations of liability.

16. THIRD PARTY LINKS AND ADVERTISEMENTS

A. Links to Folo

a. You may link to the Folo homepage, provided you do so in a way that is fair and legal and does not damage our reputation or take advantage of it, but you must not establish a link in such a way as to suggest any form of association, approval, or endorsement on our part.
b. If you are a Creator, when promoting your Creator account, you must comply with our Terms of Service and the terms of service of any other website where you place a link to or otherwise promote your Creator account. When promoting your Creator account, you must not impersonate Folo or give the impression that your Creator account is being promoted by us if this is not the case. You must not promote your Folo account by using Google Ads or any similar advertising platform or search engine advertising service.

B. Links from Folo

a. If Folo contains links to other sites and resources provided by third parties, these links are provided for your convenience only. Such links should not be interpreted as approval by us of those linked websites or information you may obtain from them. We have no control over the contents of those sites or resources and accept no responsibility for them or for any loss or damage that may arise from your use of them. If you decide to access any of the third-party websites linked to Folo, you do so entirely at your own risk and subject to the terms and conditions of use for such websites.

C. DOMAIN NAMES

a. In some instances, Folo may allow Creators to register or use domain names that contain the Folo trademark or a confusingly similar term. However, you will not register such a domain name, unless:
b. The domain name is registered by the Creator.
c. The domain name redirects to the Creator's Folo profile. Domain names containing the Folo trademark or a confusingly similar term must not direct to any other website, including link aggregators.
d. The Creator obtains prior written permission from Folo and signs a licensing agreement.

If you would like to register a domain name containing the Folo trademark or a confusingly similar term, please contact support@Folo.co. Failing to comply with these provisions or the licensing agreement will be considered a violation of the licensing agreement and may result in Folo filing a domain dispute against the registrant.

17. ANTI-SLAVERY & ANTI-TRAFFICKING STATEMENT

Folo is committed to upholding the highest ethical standards in all of our business practices and does not tolerate any form of modern slavery or human trafficking. As part of this commitment, we uphold the standards set out in the Modern Slavery Act 2015 by implementing the following systems and controls to ensure that modern slavery is not taking place anywhere within our organisation. -

A. We provide training to our employees to ensure that they are aware of the signs of modern slavery and human trafficking and know how to report any suspicions.
B. We encourage our users and employees to report any suspicions of modern slavery or human trafficking.

C. We promptly investigate any reports of modern slavery or human trafficking and taking appropriate action if necessary.
D. We ensure that all our policies and procedures, including but not limited to this Terms of Service are up-to-date and comply with all relevant laws and regulations.

18. GENERAL INFORMATION

A. Entire Agreement. These Terms of Service constitute the entire agreement between you and us regarding the use of the Website and supersedes all prior understandings, agreements and documentation, if any, relating to such subject matter.

B. Headings and Interpretation. The section titles in these Terms of Service are for convenience only and have no legal or contractual effect. The word “including” means “including without limitation”.

C. Language. If these Terms of Service are translated into any other language, it will be for information purposes only and the English language will prevail in the event of any conflict between the translated version and the English-language version.

D. Change of Terms. These Terms of Service are subject to occasional revisions and updates to reflect the latest changes in applicable laws and regulatory requirements, or to improve performance, enhance functionality, or address cybersecurity issues. If we make any substantial changes, we may notify you by sending you an e-mail to the last e-mail address you provided to us (if any), and/or by prominently posting notice of the changes on our website. You are responsible for providing us with your most current e-mail address. In the event that the last e-mail address that you have provided us is not valid, or for any reason is not capable of delivering to you the notice described above, our dispatch of the e-mail containing such notice will nonetheless constitute effective notice of the changes described in the notice. Continued use of the Folo website following notice of such changes shall indicate your acknowledgement of such changes and agreement to be bound by the terms and conditions of such changes.

E. Electronic Communications. The communications between you and Folo use electronic means, whether you use the Website or send us emails, or whether Folo posts notices on the Website or communicates with you via email. For contractual purposes, you (a) consent to receive communications from Folo in an electronic form; and (b) agree that all terms and conditions, agreements, notices, disclosures, and other communications that Folo provides to you electronically satisfy any legal requirement that such communications would satisfy if it were be in a hardcopy writing.

F. Governing Law and Jurisdiction. These Terms of Service and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of England and Wales, without regard to its conflict-of-law provisions. You understand and agree that the appropriate English courts at London shall have exclusive jurisdiction to resolve any dispute or claim (including non-contractual disputes or claims) which you have or which we have arising out of or in connection with your agreement with us (including its subject matter or formation) or your use of Folo.

G. Limitation period for bringing claims. Except where prohibited by applicable law, any claim or cause of action which you have concerning Folo (including those arising out of or related to your agreement with us) must be filed within one year after the date on which such claim or cause of action arose or the date on which you learned of the facts giving rise to the cause of action (whichever is the earlier), or be forever barred.

H. Relationship between Parties. For the purposes of these Terms of Service, a Creator is understood to be an independent contractor and not an employee, agent, or partner of Folo. Creator acknowledges and agrees that nothing in these Terms of Service shall be construed as

creating any agency, employment relationship, joint or collaborative venture, or partnership of any kind between Creator and Folo, its employees, agents, or assigns. Furthermore, Creator acknowledges and agrees that Folo has no direct or indirect control over the monitoring, supervision, prior approval, or review of the Content Published by Creator through the Website. Creator understands and agrees that Live Streams may be monitored and/or recorded by Folo in accordance with its Privacy Policy.

I. Severability. If any provision of these Terms of Service is, for any reason, held to be invalid or unenforceable, the other provisions of these Terms of Service will be unimpaired and the invalid or unenforceable provision will be deemed modified so that it is valid and enforceable to the maximum extent permitted by law.

J. Waiver. A waiver by Folo of any right or remedy under these Terms of Service shall only be effective if it is in writing, executed by a duly authorised representative of Folo and shall apply only to the circumstances for which it is given. Our failure to exercise or enforce any right or remedy under these Terms of Service shall not operate as a waiver of such right or remedy, nor shall it prevent any future exercise or enforcement of such right or remedy. No single or partial exercise of any right or remedy shall preclude or restrict the further exercise of any such right or remedy or other rights or remedies.

K. Assignment. These Terms of Service and your duties and obligations stated herein, may not be assigned, subcontracted, delegated, or otherwise transferred by you without Folo's prior written consent, and any attempted assignment, subcontract, delegation, or transfer in violation of the foregoing will be null and void.

L. Contact Information. If you have any questions or complaints regarding these Terms of Service or the Website, or if these Terms of Service require you to give notice to us in writing, please contact us at support@Folo.co.